

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

Summons filed on:
3/19/2014

- - - - -x

BRANDON BROWN,

Plaintiff,

- against -

CITY OF NEW YORK; POLICE OFFICER JOSUE
MARCELIN, SHIELD #26029, IN HIS
OFFICIAL CAPACITY AS NEW YORK CITY
POLICE OFFICER AND INDIVIDUALLY; and
POLICE OFFICER LAURA BARBATO, SHIELD
#9549, IN HER OFFICIAL CAPACITY AS NEW
YORK CITY POLICE OFFICER AND
INDIVIDUALLY

Defendants.

- - - - -x

S U M M O N S

Plaintiff Address:

255 Nuber Avenue
Mount Vernon, NY
10550

County of Bronx

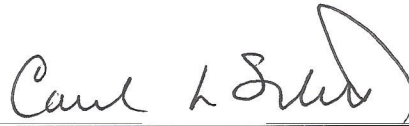
Venue based on:

Situs of Incident

To the above named Defendant:

YOU ARE HEREBY SUMMONED to answer the complaint in
this action and to serve a copy of your answer, or if the
complaint is not served with this summons, to serve a
notice of appearance, on the plaintiff's attorneys within
twenty (20) days after the service of this summons,
exclusive of the day of service (or within thirty (30) days
after service is completed if this summons is not
personally delivered to you within the State of New York);
and in the case of your failure to appear or answer,
judgment will be taken against you by default for the
relief demanded in the complaint.

Dated: Huntington, New York
March 19, 2014



THE SCHLITT LAW FIRM
By: Carol L. Schlitt
Attorney for Plaintiff
79 Wall Street
Huntington, New York 11743
(631) 425-9775

TO:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, New York 10007

The undersigned, as attorney for plaintiff, certifies that the Summons and Complaint are not frivolous in conformity with '130.1-a of the Rules of the Chief Administrator (22NYCRR).



Carol L. Schlitt

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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BRANDON BROWN,

VERIFIED COMPLAINT

Plaintiff,

Index No.

- against -

CITY OF NEW YORK; POLICE OFFICER JOSUE
MARCELIN, SHIELD #26029, IN HIS OFFICIAL
CAPACITY AS NEW YORK CITY POLICE OFFICER
AND INDIVIDUALLY; and POLICE OFFICER LAURA
BARBATO, SHIELD #9549, IN HER OFFICIAL
CAPACITY AS NEW YORK CITY POLICE OFFICER
AND INDIVIDUALLY

Defendants.

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Plaintiff BRANDON BROWN, complaining of the defendants
herein, respectfully shows to this Court and alleges as follows:

THE PARTIES

1. At all times hereinafter mentioned, Plaintiff was and still
is a resident of the County of Westchester, in the State of New
York.

2. At all times hereinafter mentioned the defendant, the CITY OF
NEW YORK, was and is a municipal corporation, duly organized and
existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, the defendant, the CITY OF NEW YORK, its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York, including all police officers thereof.

4. At all times relevant and material herein, the defendant JOSUE MARCELIN was an employee of the Police Department of the City of New York.

5. At all times relevant and material herein, the defendant LAURA BARBATO was an employee of the Police Department of the City of New York.

**ALLEGATIONS PERTAINING
TO ALL OF PLAINTIFF'S CLAIMS**

6. On or about December 30, 2012, Plaintiff was at 4024 Laconia Avenue, Second Floor, in the County of the Bronx.

7. On or about December 30, 2012, the defendants JOSUE MARCELIN and LAURA BARBATO, were on duty and/or acting as employees, agents or servants of the defendant CITY OF NEW YORK, and were also present at the same time and in the same place as Plaintiff, as aforesaid.

8. At approximately 1:00 A.M., on December 30, 2012, the defendants JOSUE MARCELIN and LAURA BARBATO, detained, attacked and assaulted Plaintiff.

9. In addition to the defendants' willful and intentional attack upon Plaintiff, the defendants intentionally held and restrained Plaintiff without his consent.

10. Plaintiff was then arrested and/or caused to be arrested, imprisoned, and charged with various crimes.

11. Subsequent to Plaintiff's arrest, Defendant, the CITY OF NEW YORK, through its agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against Plaintiff.

12. The said malicious prosecution of Plaintiff is ongoing.

13. At the time of his arrest, Plaintiff had not committed or attempted to commit any crime or illegal acts.

14. All of the defendants' acts described in the preceding two paragraphs were without probable or just cause, grounds or provocation, and were excessive, unreasonable, unnecessary and without any privilege or justification.

15. By reason of the foregoing acts by the defendants, Plaintiff was severely injured and suffered, and upon information and belief, will continue to suffer continuous pain and anguish.

16. By reason of the foregoing acts by the defendants, Plaintiff was caused severe and intense emotional and psychological anguish, distress, embarrassment, anxiety, fear, humiliation, loss of freedom, loss of earnings and damage to his reputation, and upon information and belief, will continue to suffer same.

17. By reason of the foregoing, Plaintiff was compelled to, and did necessarily, require medical attention and did necessarily pay and become liable therefore, and upon information and belief, Plaintiff will necessarily incur similar expenses.

18. By reason of the foregoing, Plaintiff was compelled to, and did necessarily, incur legal fees and did necessarily pay and become liable therefore, and upon information and belief, Plaintiff will necessarily incur similar legal fees.

19. The plaintiff has complied with all of the conditions precedent to the bringing of this action and in particular has, on or about the 5th day of February, 2013 and within ninety (90) days after the cause of action had accrued duly served the defendants with his Notice of Claim and Notice of Intention to Sue with

respect to his claims for false arrest, false imprisonment, assault, battery, malicious prosecution and violation of civil rights and privacy rights, in the manner and mode required by law.

20. That more than thirty (30) days have elapsed since the presentation of said Notice of Claim and said claim remain unadjusted and the defendants have wholly failed, neglected and refused to make any adjustment of the same.

21. That on May 2, 2013, the CITY OF NEW YORK conducted an oral examination of the plaintiff, as specified in General Municipal Law, Section 50-h.

22. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, by its agents, servants and/or employees operated and maintained police forces charged with the duty and responsibility of maintaining the peace in the City of New York.

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
FOR ASSAULT AND BATTERY**

23. That on or about the 30th day of December, 2012, while plaintiff was lawfully in the apartment of a friend at 4024 Laconia Avenue, Apt. 2B, Bronx, NY 10466, he was unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly, and without cause, reason, or justification, assaulted and battered by police officers employed by the defendant the CITY

OF NEW YORK, including, but not limited to, JOSUE MARCELIN and LAURA BARBATO, in violation of the law and in violation of the rules, regulations and orders of the Police Department of the City of New York, and as a result thereof plaintiff sustained severe, serious, and permanent personal injuries, without any negligence or unlawful act on the part of the plaintiff contributing thereto.

24. That the aforesaid occurrences were the result of culpable acts and conduct of the defendant, the CITY OF NEW YORK, its agents, servants and/or employees, including but not limited to JOSUE MARCELIN and LAURA BARBATO, in unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly, and without cause, reason, or justification, assaulting and battering the plaintiff and in inadequately improperly and incompetently training and employing its police officers, together with other negligence and carelessness.

25. That by reason of all of the foregoing, plaintiff sustained conscious pain and suffering; suffered severe, serious and permanent personal injuries; suffered emotional and psychological distress, anguish, anxiety, and fear; suffered humiliation and damage to his reputation; suffered a loss of freedom; was obliged to undergo medical care and treatment; was incapacitated from his usual vocation; suffered great shock to his nervous system; and incurred medical expenses, and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
FOR FALSE ARREST AND IMPRISONMENT**

26. Plaintiff, for a second separate and distinct cause of action repeats and realleges each and every paragraph of this complaint as hereinbefore set forth.

27. Plaintiff was unlawfully, illegally, and unjustifiably arrested, detained and imprisoned by the defendants without warrant, even though they knew or should have known that he was wholly innocent of any crime then and there alleged against him.

28. That the defendant, the CITY OF NEW YORK, their agents, servants and/or employees, including but not limited to JOSUE MARCELIN and LAURA BARBATO, acted in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of Plaintiff.

29. That the aforesaid occurrences were the result of culpable acts and conduct of the defendant, the CITY OF NEW YORK, their agents, servants and/or employees, including but not limited to JOSUE MARCELIN and LAURA BARBATO, in unlawfully, illegally, and unjustifiably arresting, detaining and imprisoning the plaintiff, and in inadequately improperly and incompetently training and employing its police officers, together with other negligence and carelessness.

30. That by reason of all of the foregoing, plaintiff

sustained conscious pain and suffering; suffered emotional and psychological distress, anguish, anxiety, and fear; suffered humiliation and damage to his reputation; suffered a loss of freedom; was incapacitated from his usual vocation; and suffered great shock to his nervous system, and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
FOR MALICIOUS PROSECUTION**

31. Plaintiff, for a third separate and distinct cause of action repeats and realleges each and every paragraph of this complaint as hereinbefore set forth.

32. That subsequent to Plaintiff's arrest, Defendant, the CITY OF NEW YORK, through its agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against Plaintiff on December 30, 2012, by filing an accusatory instrument, without probable cause and in bad faith.

33. That subsequent to Plaintiff's arrest, Defendant, JOSUE MARCELIN, did give false testimony in connection with Plaintiff's criminal prosecution.

34. That subsequent to Plaintiff's arrest, Defendant, LAURA BARBATO, did give false testimony in connection with Plaintiff's criminal prosecution.

35. That in commencing and continuing said malicious prosecution, Defendant, the CITY OF NEW YORK, its agents, servants and/or employees caused Plaintiff to be falsely charged with crimes in violation of the Penal Laws of the State of New York.

36. Plaintiff had not committed any illegal act or crime.

37. Plaintiff had not given Defendant, the CITY OF NEW YORK, its agents, servants, and/or employees, including but not limited to JOSUE MARCELIN and LAURA BARBATO, probable cause to believe that he had committed the illegal acts of which he was accused.

38. That Defendant, the CITY OF NEW YORK, its agents, servants, and/or employees, including but not limited to JOSUE MARCELIN and LAURA BARBATO, knew or should have known, through the exercise of proper procedure and reasonable care that said investigation was false, flawed and incomplete.

39. Defendants, JOSUE MARCELIN and LAURA BARBATO, willfully and wrongfully accused Plaintiff of having committed crimes in violation of the Penal Laws of the State of New York.

40. That by reason of all of the foregoing, plaintiff sustained conscious pain and suffering; suffered emotional and psychological distress, anguish, anxiety, and fear; suffered humiliation and damage to his reputation; suffered a loss of freedom; was incapacitated from his usual vocation; and suffered great shock to his nervous system, and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
FOR NEGLIGENCE**

41. Plaintiff repeats, reiterates, and realleges each and every allegation heretofore set forth in this Complaint.

42. That the Defendant, the CITY OF NEW YORK, herein, their agents, servants and/or employees were negligent in the:

a. hiring and retaining of a person or persons who was/were unfit to serve as police officers and who it knew or should have known had negligent, reckless, careless or dangerous propensities and a lack of proper temperament, organization, reliability, responsibility, carefulness and prudence; in that the City of New York, its agents, servants and/or employees failed to exercise reasonable precautions in employing and retaining said officers by failing to properly investigate their background and employment records and/or having knowledge of said records, thereafter hiring and/or retaining said officers; and,

b. in the training and instruction of its police officers by not exercising care in instructing them as to their deportment, duties, behavior and conduct as police officers and representatives of the City of New York and in the training and instruction among other things, on the proper use of their nightsticks, handcuffs, etc. and/or method of arrest, detainment and/or release;

c. in failing to use such care in the performance of police officer's duties as a reasonably prudent and careful custodial, correctional, legal, court, clerical or police officer would have used under similar circumstances including but not limited to, improper and negligent use of or carrying out of their duty which a police officer of ordinary procedure would not have done all without any negligence on the part of the claimant contributing thereto.

43. That by reason of the said negligence, Plaintiff was caused to be illegally deprived of his civil rights; was caused to be assaulted and battered; was unlawfully arrested, detained and imprisoned; and was wrongfully accused of crimes and maliciously prosecuted for said crimes.

44. That by reason of all of the foregoing, Plaintiff sustained conscious pain and suffering; suffered severe, serious and permanent personal injuries; suffered emotional and psychological distress, anguish, anxiety, and fear; suffered humiliation and damage to his reputation; suffered a loss of freedom; was obliged to undergo medical care and treatment; was incapacitated from his usual vocation; suffered great shock to his nervous system; and incurred medical expenses, and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
AGAINST THE INDIVIDUAL DEFENDANTS**

45. Plaintiff repeats, reiterates, and realleges each and every allegation heretofore set forth in this Complaint.

46. That Plaintiff in no way provoked or encouraged the aforesaid physical battery, other tortious conduct, false arrest, false imprisonment and malicious prosecution by the individual defendants, and further that the defendants' physical contacts with and arrest and imprisonment of said plaintiff were not justified by any privilege held by the defendants or any probable cause or reasonable suspicion of any criminal conduct by said plaintiff, and said plaintiff was not engaged in any unlawful activity whatsoever.

47. That if certain of the individual defendants did not themselves engage in tortious conduct or physically batter and abuse said plaintiff, or arrest him, said individual defendants failed to prevent the physical battery, arrest and abuse of the said plaintiff and other tortious conduct by the other individual defendants despite having a duty to do so, said failure to act being either intentional and/or in gross disregard of the civil rights of said plaintiff.

48. That the aforesaid acts and/or omissions of the individual defendants were pursuant to an agreement and/or

conspiracy among them to, while acting under color of state law, violate the civil rights of Plaintiff and other non-Caucasian persons.

49. That the aforesaid acts and/or omissions of the individual defendants caused the plaintiff severe personal injuries, humiliation, damage to his reputation, mental anguish and distress.

50. That the aforesaid acts and/or omissions of the individual defendant violated the plaintiff's civil rights, as said rights are secured by 42 U.S.C. 1981, 1983, 1985(2)(3), 1986 and 1988, and the Constitutions of the State of New York and the United States, including the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereto, said civil rights including, but not limited to: the right to enjoy equal protection of the laws; the right to have all the legal rights enjoyed by Caucasian persons, including the right to be secure in his person and/or property; the right to have persons entrusted with legal authority to act to enforce his civil rights to either act to enforce such rights or be themselves adjudicated as having violated the plaintiff's civil rights and the right to be free from conspiracies to violate his civil rights by those acting under color of state law.

51. That as a result of the foregoing, the plaintiff was caused to suffer damages in an amount that would be beyond the jurisdiction of any Court of this State that would otherwise have

jurisdiction over this matter and seeks an additional award of punitive damages against the individual defendants in the amount of TWO MILLION DOLLARS.

**AS AND FOR AN SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
AGAINST DEFENDANT CITY**

52. Plaintiff repeats, reiterates, and realleges each and every allegation heretofore set forth in this Complaint.

53. There was no probable cause for any of the allegations made by any of the individual defendants of criminal or other improper conduct by Plaintiff.

54. There was no probable cause or other legal excuse or privilege for the aforesaid alleged instances of assault and battery; false arrest and imprisonment; malicious prosecution for specious charges; and intentional infliction of emotional distress upon said Plaintiff.

55. That the individual defendants falsely represented to other employees of the defendant, the CITY OF NEW YORK, to make it appear that there had been a justification for the assaulting, battering, trespass and use of physical force on; the false arrest and imprisonment of; and the malicious prosecution for specious charges of Plaintiff in order to protect the individual defendants, or certain of such individual defendants, from civil and criminal liability for such acts.

56. That various employees of the defendant, the CITY OF NEW YORK, knew that the individual defendants, or certain of the individual defendants, falsely represented to other employees of the defendant, the CITY OF NEW YORK, in order to make it appear that there had been a justification for the assaulting, battering, and use of physical force on; the false arrest and imprisonment of; and the malicious prosecution for specious charges of said plaintiff, in order to protect the individual defendants, or certain of the individual defendants, from civil and criminal liability for such acts, and said other employees of the defendant, the CITY OF NEW YORK, violated the proper procedures of defendant, the CITY OF NEW YORK, in failing to disclose such false statements by the individual defendants, or certain of the individual defendants, and/or otherwise assisted the individual defendants, or some of them, in making such false statements, all for the purpose of protecting the individual defendants, or some of them, from civil and criminal liability for the assaulting, and battering of said plaintiff.

57. By the actions described above, the defendant, the CITY OF NEW YORK, by the acts of its employees, including the individual defendants, or some of the individual defendants, in furtherance of the official policies and/or customs of defendant the CITY OF NEW YORK deprived said plaintiff of the following clearly established and well-settled constitutional rights:

d. Freedom from the use of excessive and unreasonable force

and unreasonable stops, frisks, searches and seizures, said rights being secured by the Fourth Amendment of the United States Constitution, which guarantees that said plaintiff shall be free from unreasonable seizures and searches of his person, and the Fifth and Fourteenth Amendments of the United States Constitution, which protects the plaintiff from deprivation of liberty and summary punishment without due process of law;

e. Freedom from unreasonable search and seizure of plaintiff's person and/or property, as said rights are secured by the Fourth and Fourteenth Amendments of the United States Constitution;

f. Freedom to peacefully associate and assemble, as said rights are secured by the First and Fourteenth Amendments of the United States Constitution.

58. The individual defendants, or some of them, subjected said Plaintiff to the deprivations set forth in "57", aforesaid, either maliciously or by acting with a reckless disregard for whether plaintiff's rights would be violated by their actions.

59. The individual defendants, or some of them, committed the foregoing acts or omissions without just and legal cause, thereby violating the rights of said plaintiff under the laws and Constitutions of the United States, in particular the First, Fourth, Fifth and Fourteenth Amendments, and his rights under the

Constitution and laws of the State of New York.

60. In committing the aforesaid acts or omissions, the individual defendants acted illegally and directly violated the rules and regulations of New York City Police Department and failed to enforce said rules and regulations, in particular those rules and regulations regarding the use of force, the proper language to use when dealing with members of the public, the proper means and manner in which to question a person in connection with a law enforcement investigation and the other appropriate rules and regulations governing defendants that were applicable in the circumstances.

61. That the aforesaid alleged acts and/or omissions of the individual defendants were pursuant to, and in furtherance of, an official policy or custom of the defendant CITY OF NEW YORK.

62. That the aforesaid official customs and practices of the defendant CITY OF NEW YORK were implemented and created by its employees, including those supervisory and/or commanding employees of the Police Department of the City of New York whose acts and/or omissions create "official policies, customs and/or practices" within the meaning of 42 U.S.C. 1983 etc. Said official customs and practices included, but were not limited to, the following:

g. Encouraging, allowing, and/or ratifying a policy and custom whereby senior commanding police officers cover up or otherwise hinder the disciplining and/or prosecution of those

police officers under their command that have engaged in unjustified, unreasonable and illegal use of force and search powers;

h. Maintaining a system for disciplining police officers and investigating civilian complaints of improper police conduct that fails to credit testimony of complainants and other non-police officer witnesses and uncritically and without question relies on reports of police officers involved in such incidents;

i. Encouraging State and Federal District Attorneys to refrain from criminal prosecutions of police officers who violate the law and to hinder the efforts of those who seek to bring civil claims against such police officers;

j. Refusing to release to persons who claim they have been subject to unjustified, unreasonable and illegal use of force and search powers by police officers the defendants' internal and official documents relative to the incidents that give rise to such claims;

k. Maintaining a system for disciplining police officers and investigating civilian complaints of improper police conduct that is dominated and controlled by police department employees who are unable to be impartial and who systematically refuse to give proper weight to evidence of police misconduct;

1. Tolerating the use of racist slurs and sentiments among members of its police departments and failing to discipline or discharge those police officers who engage in such conduct;

m. Failing to properly hire, train and supervise police officers in a fashion that would encourage police officers not to engage in the unjustified, unreasonable, illegal and abusive use of force and search powers, and in ratifying, justifying, and protecting from civil and criminal liability the acts of those police officers that are unjustified, unreasonable and involve the illegal or abusive use of force and search powers;

n. Having and allowing senior police officers to make public comments exonerating police officers accused of unjustified, unreasonable and illegal use of force and search and arrest powers before internal investigations of such police officers' conduct is completed;

o. Maintaining and operating police Internal Affairs Units in which the supervisors of said Units engage in a systematic policy and practice of refusing to fully investigate complaints of police misconduct. Said supervisors also intentionally obstruct investigations of police misconduct by instructing those persons under their command not to seek relevant and necessary evidence to document claims of police misconduct. Said supervisors also enforce, encourage, and

maintain a policy whereby substantial amounts of information obtained in police internal affairs investigations are not released to district attorneys' offices that are considering criminal prosecutions of police officers, said policy having the intent and/or effect of hampering criminal prosecutions of police officers who violate the law;

p. Failing to act to discipline, suspend and/or otherwise take remedial action against those employees of the New York City Police Department who, while acting under the color of state law, violated the civil rights of members of the public;

q. Allowing, causing, tolerating, creating, suffering and/or otherwise permitting widespread racist sentiments among its police officers, and in particular condoning and creating, through inaction, an official policy, custom and practice of abusive and illegal conduct by its police officers that violated the civil rights of non-Caucasians;

r. Allowing, suffering, creating and/or otherwise permitting an environment whereby a custom and practice known as "the wall of silence" exists. Said custom and practice involves a virtually uniform refusal by New York City police officers to testify truthfully about instances of police misconduct and civil rights violations. Said custom and practice involves either failing to testify about, or otherwise act to prevent, police misconduct and civil rights

violations. Said custom and practice also involves perjury by police officers that is used to exonerate other police officers from charges of misconduct and/or civil rights violations and/or is used to deem such charges "administratively unproved" for the purpose of Internal Affairs investigations and administrative discipline of police officers;

s. Allowing, suffering, creating and/or otherwise permitting an official policy, custom and/or practice of hiring and retaining for employment police officers with predispositions to abuse and violate the civil rights of others, and in particular non-Caucasians. This policy, custom and practice is evidenced, in part, by the CITY OF NEW YORK's inadequate and/or non-existent attempts to screen applicants with such tendencies and exclude them from employment as police officers and/or discharge such persons from employment as police officers;

t. Active participation in and/or condoning of, conspiracies by various members of its police force, including senior commanding and/or other supervisory police officers, to, while acting under color of state law, deprive non-Caucasian persons of their civil rights;

63. During all relevant times, the defendant CITY OF NEW YORK permitted and tolerated a pattern and practice of unjustified, unreasonable and illegal use of force and search

powers on non-Caucasian persons by its police officers. Although such actions were improper and illegal, the police officers involved were not prosecuted, disciplined, or subjected to restraint, and such incidents were, in fact, covered up with official claims that such improper and illegal acts were justified and proper and/or that the evidence available was insufficient to either charge the police officers involved with committing such acts or exonerate such police officers or find that the claims of improper or illegal conduct were unfounded. As a result, the police officers employed by defendant CITY OF NEW YORK were caused and encouraged to believe that non-Caucasian persons could be subjected to unjustified, unreasonable and illegal use of force and search powers, and that such acts or omissions would, in fact, be permitted and ratified as just and proper by the defendant CITY OF NEW YORK.

64. In addition to permitting a practice of unjustified, unreasonable and illegal and abusive use of force and search and arrest powers against non-Caucasian persons, the defendant CITY OF NEW YORK failed to maintain a proper system for the investigation of complaints of unjustified, unreasonable and illegal and abusive use of force and search powers by police officers.

65. The defendant CITY OF NEW YORK has maintained systems for the investigation of complaints of unjustified, unreasonable and illegal and abusive use of force and search powers by police officers which have failed to properly identify such actions by

its police officers and subject police officers who commit such acts to closer supervision, remedial training, discipline, or restraint, to the extent that it has become the de facto policy and custom of said defendant to tolerate and ratify the unjustified, unreasonable and illegal use of force and search powers by its police officers.

66. That there also exists, as a policy and custom of the defendant CITY OF NEW YORK a "code of silence" which is pervasive throughout said defendant's police department. Said "code of silence" is abided to by virtually all police officers of all ranks, including supervisory police officers, and involves the refusal of police officers to give honest testimony, or any testimony whatsoever, about incidents involving illegal, improper, and abusive conduct by police officers that violate persons, such as the plaintiff's, civil rights. Said "code of silence" is tolerated, if not encouraged, by defendant CITY OF NEW YORK as a means to prevent effective criminal prosecution of those police officers who engage in illegal conduct and to shield defendant CITY OF NEW YORK from possible civil liability for the acts of those police officers who violate persons, such as the plaintiff's, civil rights.

67. The foregoing acts, omissions, systemic flaws, policies, and customs of the defendant CITY OF NEW YORK caused said defendant's police officers to believe that unjustified, unreasonable and illegal use of force and search powers would not

be aggressively, honestly and properly investigated, and that such acts as a matter of policy and custom would be ratified, concealed, and justified by defendant CITY OF NEW YORK, with the foreseeable result that defendant CITY OF NEW YORK's police officers are more likely to engage in the unjustified, unreasonable and illegal and abusive use of force and search powers, particularly against non-Caucasians.

68. As a direct and proximate result of the aforesaid acts, omissions, systemic flaws, policies and customs of the defendant, CITY, said defendant's employees, including all relevant individual defendants, did assault, batter, subject to excessive force, intentionally inflict emotional distress upon, trespass upon the person of, and in a grossly negligent and wantonly reckless manner inflict personal injuries upon Plaintiff.

69. Defendant, CITY OF NEW YORK, by reason of its aforesaid policies, customs, acts, omissions, and its ratification of the acts of its agents, servants and/or employees, has deprived said Plaintiff of rights and liberties secured to him through the Constitution and Laws of the United States of America and the State of New York, including the First, Fourth, Fifth, Eighth, and Fourteenth Amendments of the United States Constitution and 42 U.S.C. Sections 1983 and 1988, and has caused said Plaintiff great pain and physical, emotional, and psychological injuries.

70. That the aforesaid acts, ratifications, omissions, customs and policies of the defendant CITY OF NEW YORK were done

with a deliberate and/or grossly negligent indifference to the protection of the federally protected civil rights of persons such as the plaintiff and said acts, ratifications, omissions, customs and policies of defendant CITY OF NEW YORK were the direct and proximate cause of the aforesaid violations of the civil rights secured to said plaintiff under 42 U.S.C. Sections 1981, 1983, 1985(2)(3), 1986 and 1988.

71. As a direct and proximate result of the above described violations of his constitutional and statutory rights, said Plaintiff suffered grievous bodily harm and emotional injury, all of which was in violation of his rights under the laws and Constitution of the United States, including the First, Fourth, Fifth, Eighth, and Fourteenth Amendments and 42 U.S.C. Sections 1981, 1983, 1985(2)(3), 1986 and 1988.

72. That as a result of the foregoing, the plaintiff was caused to suffer damages in an amount that would be beyond the jurisdiction of any Court of this State that would otherwise have jurisdiction over this matter.

WHEREFORE, plaintiff BRANDON BROWN, demands judgment against defendants in the First, Second, Third, Fourth, Fifth and Sixth Causes of Action in amounts exceeding the jurisdictional limits of all lower courts, all together with the costs and disbursements of this action.

Dated: Huntington, New York
March 19, 2014



CAROL L. SCHLITT, Esq.
Attorney for Plaintiff
223 Wall Street, Suite 357
Huntington, New York 11743
(631) 425-9775

STATE OF NEW YORK)

COUNTY OF SUFFOLK)

CAROL L. SCHLITT, an attorney admitted to practice in the State of New York, affirms: That affirmant is the attorney for PLAINTIFF in the within action; that affirmant has read the foregoing SUMMONS AND COMPLAINT, and knows the contents thereof; that ~~the same is true to~~ affirmant's own knowledge, except as to the matters therein stated to alleged on information and belief, and as to those matters, affirmant believes them to be true.

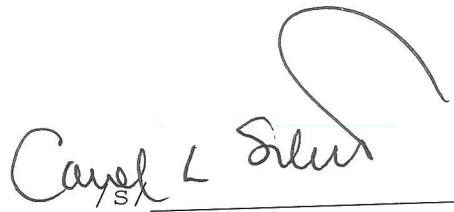
The undersigned further states that the reason this affirmation is made by affirmant and not by Plaintiff is because the said plaintiff are not within the County of Suffolk wherein affirmant's office is located.

The ground of affirmant's belief as to all matters not stated to be upon affirmant's knowledge are information and investigation obtained by affirmant in the course of affirmant's duties as attorney for plaintiff.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: Huntington, New York

March 19, 2014



CAROL L. SCHLITT

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

- - - - - x

BRANDON BROWN,

Plaintiff,

Index No.

- against -

CITY OF NEW YORK; POLICE OFFICER JOSUE
MARCELIN, SHIELD #26029, IN HIS
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INDIVIDUALLY

Defendants.

- - - - - x

Summons and Complaint

The Schlitt Law Firm
Attorney for Plaintiff
79 Wall Street
Huntington, New York 11743
(631) 425-9775

Signature (Rule 130-1.1-a)

Carol Schlitt